
Argument in behalf of the attorney.

3. The courts of the District are, of course, courts of the United States; and whether the proceeding for which this action is brought, be regarded as a punishment for contempt, or as a punishment for alleged misbehavior in office—a matter which the form of the order leaves quite uncertain—it was in the face of the statute of March 2d, 1831. This is undoubtedly so if it was for contempt; and even if it was for misbehavior in office the statute would still seem to apply; for it prohibits a summary proceeding except in the cases which the act specifies; cases which all look to misconduct that interferes with the administration of justice. But for a man who may have been once admitted to the bar, to threaten out of court, with assault, another man who happens to be a judge, and so occasionally in court, is neither misbehavior in office nor a contempt of court.

4. But if the offence for which Mr. Bradley was disbarred was misbehavior in office, and if that be not within the statute of March 2d, 1831, still, undoubtedly, he should have had notice and an opportunity of defending himself. Admit that the court may proceed summarily, still summary jurisdiction is not arbitrary power; and a summons and opportunity of being heard is a fundamental principle of all justice.* The principle has been declared by this court in *Ex parte Garland*,† to be specifically applicable to the case of disbarring an attorney; and so declared for obvious reasons. Without then having summoned Mr. Bradley, and having given to him an opportunity to be heard, the court had no jurisdiction of Mr. Bradley's person or of any case relating to him. It is not enough that it have jurisdiction over the subject-matter of the complainant generally; it must have jurisdiction over the particular case, and if it have not, the judgment is void *ab initio*.‡ The whole subject is set forth in Smith's Leading Cases,§ where the authorities are col-

* *Rex v. Chancellor of Cambridge*, 2 Lord Raymond, 1348.

† 4 Wallace, 378.

‡ *Mitchell v. Foster*, 12 Adolphus & Ellis, 472; *United States v. Arredondo*, 6 Peters, 709; *Walden v. Craig's Heirs*, 14 Id. 154.

§ Vol. 1, p. 1023, edition of 1866, *Crepps v. Durden*.